

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR

HOUSE BILL NO. 4392

By: Miller

COMMITTEE SUBSTITUTE

An Act relating to aerospace; creating the Sustainable Emerging Aviation Services Investment Program; defining terms; requiring certain designations; requiring specific requirements be met; allowing for certain investments; prohibiting certain investments; providing for the promulgation of rules; creating the Sustainable Emerging Aviation Services Investment Program Revolving Fund; establishing revolving fund characteristics; declaring funds appropriated; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 600 of Title 3, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Sustainable Emerging Aviation Services Investment Program (SEA SIP)".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 601 of Title 3, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Advanced Air Mobility" or "AAM" shall mean the definition found in the FAA Reauthorization Act of 2024, P.L. 118-63, Section 951; 138 Stat. 1375;

2. "Department" shall refer to the Oklahoma Department of Aerospace and Aeronautics;

3. "Emerging Aviation Services" shall refer to either AAM, SUAS, or nontraditional aircraft;

4. "Nontraditional aircraft" shall refer to aircraft, systems, and operations that are being integrated into the National Airspace System (NAS), including all other forms of Electric Vehicle Takeoff and Landing (EVTOL), Alternate Power Plant, Short Takeoff and Landing (STOL), and Autonomous Aircraft that are larger than fifty-five (55) pounds but less than one thousand three hundred twenty (1,320) pounds capable of carrying cargo or human passengers and may operate under 14 CFR, Part 107 with appropriate waivers, Part 91, Part 135, Part 137, and Part 141 operations or those technologies that have a maximum takeoff weight greater than one thousand three hundred twenty (1,320) pounds and that do not fit the definition of Advanced Air Mobility or Small Uncrewed Aerial Systems;

5. "Site" shall mean a public entity engaged in a partnership or collaboration for the purposes of this act;

1 6. "Small Uncrewed Aerial Systems (SUAS)" or "drone" shall
2 refer to unmanned aircraft weighing less than fifty-five (55) pounds
3 gross weight on takeoff; and

4 7. "Supporting airport" shall refer to a public use airport
5 that is included in the Oklahoma Airport System Plan.

6 SECTION 3. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 602 of Title 3, unless there is
8 created a duplication in numbering, reads as follows:

9 A. The Oklahoma Department of Aerospace and Aeronautics shall
10 designate not less than five sites as Advanced Air Mobility (AAM)
11 pilot sites within the state. Such sites shall be eligible for AAM-
12 specific support and regulatory assistance; provided, the site meets
13 program guidance as issued by the Department. Of the designated
14 sites, not less than two sites shall be designated as supporting
15 airports and demonstrate a commitment to publicly operated AAM
16 infrastructure, the public benefit of such technology, and a pathway
17 to financial stability.

18 B. The Department may approve and provide funding opportunities
19 at approved sites for infrastructure, equipment, software, or other
20 needs the site may have to work with AAM companies, operators, and
21 supportive industries. The Department shall not approve funding for
22 research and development opportunities nor the purchase of
23 nontraditional aircraft or small uncrewed aerial systems (SUAS).
24 The Department shall retain ownership of any asset it invests in.

1 Sites shall be required to sign agreements acknowledging that the
2 Department retains the ownership of the asset. The Department may
3 enter into agreements with the site or approved operators to recoup
4 the financial investment the Department has made in the asset. Such
5 funds shall be deposited in the Sustainable Emerging Aviation
6 Services Investment Program (SEA SIP) Revolving Fund created in
7 Section 4 of this act.

8 C. The Department shall promulgate rules for SEA SIP.

9 D. Beginning July 1, 2027, and every year thereafter, the
10 Department shall submit a report to the Governor, the Speaker of the
11 Oklahoma House of Representatives, the President Pro Tempore of the
12 Oklahoma State Senate, the Appropriations and Budget chair of the
13 Oklahoma House of Representatives, the Appropriations chair of the
14 Oklahoma State Senate, the Appropriations and Budget Transportation
15 Subcommittee chair for the Oklahoma House of Representatives, and
16 the Appropriations General Government and Transportation
17 Subcommittee chair for the Oklahoma State Senate. The report shall
18 detail what funds have been expended throughout the year, what
19 projects have been commenced, what projects are ongoing, what
20 projects were completed, what, if any, maintenance is required of
21 the projects, and what revenues were received from the project.

22 SECTION 4. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 603 of Title 3, unless there is
24 created a duplication in numbering, reads as follows:

1 There is hereby created in the State Treasury a revolving fund
2 for the Oklahoma Department of Aerospace and Aeronautics to be
3 designated the "Sustainable Emerging Aviation Services Investment
4 Program (SEA SIP) Revolving Fund". The fund shall be a continuing
5 fund, not subject to fiscal year limitations, and shall consist of
6 all monies received by the Department as directed by law, from
7 federal and state grants or appropriations, from private donations,
8 and from revenues or fees recouped from assets in which the
9 Department invests. All monies accruing to the credit of said fund
10 are hereby appropriated and may be utilized in accordance with the
11 provisions of the Sustainable Emerging Aviation Services Investment
12 Program. Expenditures from said fund shall be made upon warrants
13 issued by the State Treasurer against claims filed as prescribed by
14 law with the Director of the Office of Management and Enterprise
15 Services for approval and payment.

16 SECTION 5. This act shall become effective November 1, 2026.

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